



POLICE DEPARTMENT

October 30, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jason Peri
Tax Registry No. 935501
Manhattan Court Section
Disciplinary Case No. 84606/08

The above-named member of the Department appeared before me on September 22, 2009, charged with the following:

1. Said Police Officer Jason Peri, assigned to the 42nd Precinct, while off-duty, on or about September 6, 2008, at a location known to this Department, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer was involved in a physical altercation with a person known to this Department causing an injury to that person.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Jason Peri, assigned to the 42nd Precinct, while off-duty, on or about September 6, 2008, at a location known to this Department, in Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did knowingly act in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Daniel Maurer, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

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DECISION

The Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Michael Phillips and Lieutenant William Burnicke. Offered into evidence was a color photocopy of the complainant /witness, Sandra Ortiz' face depicting a bruise on her left eye as Department's Exhibit (DX) 1, a color photocopy of complainant/witness Sandra Ortiz' left elbow/inner arm as DX 2 and a color photocopy of Sandra Ortiz' inner right arm and knuckles as DX 3.

Sergeant Michael Phillips

Sergeant Phillips testified that he has been a Sergeant for the Department for three and a half years. He has been in the 6th Precinct since December and prior to that, he was in the 50th Precinct and the 20th Precinct. On September 6, 2008, he responded to [REDACTED] Police Officers Stogliano and Abdelal were the responding officers on the scene who called for him. Stogliano explained that they responded to a dispute involving a police officer. He then met with the Respondent who said that he was home when his girlfriend, Sandra Ortiz, returned to the apartment and was upset. She had asked him if the baby had been fed and when he said "no," she got very upset and started to attack him. Phillips testified that the Respondent told him that she had punched him and that he also had bite marks. Phillips had observed the bite marks on the left side of his chest and left arm. Phillips indicated that the Respondent did

not mention the use of weapons.

Phillips also interviewed Sandra Ortiz in the apartment. He did not remember where the child was and believed that a family member had the child. Ortiz informed him that she had gotten home and asked the Respondent if he had fed the child. When he said "no," she got very upset and he basically told her to leave and he attacked her and pushed her in the chest. She reacted by having a physical fight. She said she hit him with a lamp and Phillips observed a lamp broken in several pieces, on the bedroom floor.

Phillips noted that "the apartment itself was relatively clean except for the bedroom area where the bed was in disarray and there was stuff on the floor, including the lamp." The child was with a family member and was fine with no injuries.

Both the Respondent and Ortiz were subsequently arrested. Ortiz was charged with assault in the second degree, which is a felony, for using the lamp as a weapon. Ortiz admitted hitting the Respondent in the head with the lamp. The Respondent was arrested for assault in the third degree, which is a misdemeanor because, while Ortiz had physical injuries, no weapon was used. Phillips stated that Ortiz had bruises on both arms and a black eye. Phillips said he saw some swelling and discoloration around the left eye. Ortiz had said that the Respondent had punched her during the fight. Phillips did not recall if Ortiz had said "punched" or "slapped." Both Ortiz and the Respondent were checked by EMS at the precinct. Each refused medical attention and did not go to the hospital.

On cross-examination, Phillips indicated that he was informed before he got to the scene that a member of the service was involved. The Respondent waited at the scene and spoke to him without requesting representation. He agreed that Ortiz' words in the

interview that night were that she was not going to lie to him regarding the lamp and that she had picked it up and smacked the Respondent over the back of the head with it.

Phillips agreed that he did not interview her further because she was arrested.

Respondent's Exhibits (RX) A and B, which are pictures of the bedroom with the lamp were entered into evidence. Phillips opined that the lamp was made of metal, in particular the base and pole.

Lieutenant William Burnicke

Burnicke is currently assigned to the Bronx Investigations Unit and was assigned to the investigation of the Respondent regarding the incident on September 6, 2008. He interviewed the Respondent on February 10, 2009, about the incident in question. The Respondent stated that he arrived at home after attending classes at John Jay College, when at approximately 1400 hrs, Ms. Ortiz decided to go out to pick up her check at the her place of employment. The Respondent did not to go with her because there was a rainstorm and he did not want their daughter, Skylar, to get wet.

Ortiz arrived back home and she started to feed the child. She became upset because the child was hungry and the Respondent had made no attempt to feed the child while she was gone. A verbal argument ensued which escalated into a physical one.

Recounting the Respondent's statement, Burnicke testified:

Basically he stated that they started to have an argument and he asked her to leave. She was in the process of packing her things and they started to argue again. During the argument they started to push each other and after they were pushing each other at one point he stated that she went to the kitchen, obtained a kitchen knife and attempted to cut his shoelaces from his sneaker collection that he has. He prevented her by keeping the door closed of the closet where the sneaker collection was...afterwards during the argument they were still arguing and then they started to push and

shove each other and at some point he was trying to restrain her because she had the two knives in her hand, she actually had two knives in her hand and as he was restraining her he had said she bit him on his bicep and he was restraining her. Eventually he took the knives away from her and he got off of her because he was laying on top of her at one point and then after he got off of her and he was attempting to leave he stated that she struck him in the back of his head with a lamp...At that time he sustained no injuries he stated that Miss Orchid [Cifre] and his sister had been knocking on the apartment door he opened the door and he just said that he was involved in something in sum and substance and he closed the door. He said everything is fine and closed the door while she stood outside the doorway.

Burnicke indicated that the Respondent had called his sister earlier to come and take the child, Skyler, because they were arguing and both his sister and Cifre arrived at the door at the same time. Burnicke indicated that the first time there was knocking at the door, the Respondent opened the door and said that everything was fine. The second time Cifre knocked at the door, Ortiz went out into the hallway to give their daughter to Cifre.

Recounting the Respondent's statements made to him, Burnicke indicated that at some point after the child had been turned over to Cifre, Ortiz slapped the Respondent.¹ Burnicke testified that Cifre said that when she went down to the apartment door, she heard yelling and screaming but could not make out what was being said. She said she knocked on the door and that Ortiz yelled that the door was open and come in. She said the Respondent came to the door and stated "not now Orchid" and politely closed the door.

Burnicke stated that Cifre said she then waited outside the door in the hallway and she called Ms. Acevedo (Ortiz' Mother) on the phone. While she was doing that, she heard Ortiz yelling "stop punching me, stop punching me." Cifre further told Burnicke

¹ At this point the Assistant Department Advocate indicated that neither Cifre nor Ortiz would be coming in to testify.

that there came a time when Ortiz opened the door telling Cifre to take her daughter and that Ortiz then walked back into the apartment. As she went back into the apartment, Ortiz stated "I am tired of this guy hitting me" and then she closed the door.

Burnicke also recounted what Ortiz told him about the events of that day.

Burnicke testified with relation to Ortiz:

She stated that she came home she went to go get her paycheck she came home and she asked him had their daughter eaten and he said that he did not feed the daughter because he did not know if she was hungry or not and a verbal argument ensued and then basically he said to her during the argument why don't you pack your bags and get out. She stated that she began to pack her bags and [the Respondent] came over and poured a bottle of beer in her purse. After pouring the beer [the Respondent] grabbed her cell phone and threw it across the room. At this point she stated how would you like it if I broke your stuff and she walked out of the room and came back with a kitchen knife and walked towards a closet in the hallway where he had a sneaker collection and was attempting to open it so she could cut off the shoelaces. He blocked her and prevented her from going into the closet...She stated during the argument he started to push her around and then he pushed her on to the bed and he held her down and was punching her on her chest, about her chest [and] she was trying to get him off her and she couldn't, he held her down with his elbows across the throat at which point she bit him to get him off her when she attempted to get out of the bed they were arguing and he smacked her in her eye.

Pictures of Ortiz were entered into evidence as DX 1, 2 and 3. In one of the pictures, Burnicke identified injuries to Ortiz' knuckles.

Burnicke determined that the child, Skylar who was 3 years old at the time, had been present during the first portion of the verbal altercation and the first part of the physical altercation, until she was given to the neighbor, Cifre. Burnicke indicated this conclusion was based on the accounts of Ortiz and Cifre. Based on his interview with Ortiz, Burnicke concluded that the child was present at the time Ortiz hit the Respondent with the lamp. He concluded that Ortiz hit the Respondent on the back of the head with

the lamp as he was going to open the door for Cifre. Burnicke indicated his conclusion was also based on his interview with the Respondent.

On cross-examination, Burnicke did not recall the Respondent ever saying that his daughter was present during the physical altercation. He agreed that the Respondent was living in a downstairs apartment and that his mother and his sister lived in different apartments in the building. He also agreed that Ortiz' mother, Sandra Acevedo, was living in New Jersey at that time, was good friends with Cifre who also lived in the building. He also agreed that when Ortiz went to the city to pick up her check, she had been texting her mother and they had some conversation. Burnicke had interviewed Acevedo and learned that these messages had troubled her mother. Ortiz had said something to her mother about taking care of her granddaughter if something happened to her.

Burnicke did not recall what Acevedo had said about her reaction to the message from her daughter so the parties stipulated that Acevedo said: "She and I have not had much communication, she constantly keeps going back to this relationship as long as I knew she was okay I didn't really this was the first communication it took me by surprise I didn't know how to think or how to react."

Burnicke agreed that Acevedo was starting to worry about her daughter. Acevedo called 911 in New Jersey and she was routed to NYPD 911 and then she was routed to Internal Affairs because she said her daughter was with a police officer. He agreed that Acevedo was worried and called Cifre and told her to check on her daughter.

Burnicke also ascertained that at some point during the verbal altercation the Respondent called his sister, Jocelyn Peri, who lived upstairs. He asked Jocelyn to come

down and take the baby because Ortiz was going crazy. Jocelyn went down to the door and Cifre was already there. Burnicke also agreed that Ortiz did not like the idea that Jocelyn was there to get the baby. Burnicke also agreed that Ortiz did not know that her mother had called Cifre.

He agreed that when Cifre came down and knocked on the door she heard yelling but did not see any violence and that the Respondent came to the door and said "Orchid now is not a good time." The Respondent then politely closed the door.

He agreed that at some point after that, Ortiz came out of the apartment with the child and gave the child to Cifre. He agreed that the Respondent was not holding Ortiz back from leaving the apartment. Ortiz went out into the hallway and used Cifre's cell phone and the Respondent did not come out into the hall. Burnicke also agreed that at some point, the Respondent's mother came home and she took the child to her apartment. He agreed that Jocelyn was also present in the hallway.

Burnicke agreed that after Ortiz turned the child over to Cifre, she had used Cifre's cell phone in the hallway. Ortiz went back into the apartment on her own.

Burnicke further agreed that Jocelyn also called 911 because Ortiz was banging on her door and arguing with her. He also agreed that after Ortiz took the child outside into the hallway and used Cifre's cell phone, a physical altercation occurred with the Respondent when Ortiz went back into the apartment. Burnicke indicated that the Respondent left the apartment, called a friend of his and waited downstairs for the police to arrive. He agreed that Ortiz walked out of the apartment looking for her daughter and she went up to Cifre's apartment and was told that the child was upstairs. Ortiz then went upstairs and that is when an argument ensued with Jocelyn who called the police.

Burnicke did not recall what Ortiz said about the fact that the Respondent's family had called 911. It was stipulated that Ortiz said that the Respondent's family were a "bunch of cowards" for calling 911 on her.

Burnicke recalled that Ortiz admitted taking a knife to cut up the Respondent's sneaker collection and that she admitted hitting the Respondent over the head with a lamp which she described as "flimsy." She also admitted to biting him. When he asked Ortiz about the injury in which the Respondent had been poked in the eye, Burnicke testified that Ortiz said "she was pointing her finger at him and he walked into it." Burnicke indicated that he made no conclusion about this statement.

The parties stipulated that Ortiz made the following statement during an interview with Sergeant Olsen:

Then I went back in the apartment [the Respondent] was getting dressed and he said, oh, you really going to call the cops on me and I said yeah, look at my fucking face. I said you you I was pointing when I was talking to him and I don't know if he was going to come at me again or whatever but he was walking towards me and while he was talking and pointing like he bends my finger somehow and that is how his finger got -- that is how his eye got red or whatever because then in a real dramatic move he fell on the floor and whatever and then he left.

Olsen asked, "He walked into your finger?" and Ortiz replied, "yeah, basically because I didn't mean who does that, so I continued I left I was going to continue packing I went upstairs and I guess that means he was going to continue packing," (T 61-62).

Respondent's Exhibits C and D, photographs of the Respondent, were received into evidence and Burnicke agreed that they accurately reflected how the Respondent looked on the night in question.

Burnicke agreed that Ortiz did not want Jocelyn to come downstairs even though

she (Ortiz) was involved in an altercation with the Respondent. He also agreed that Cifre did not see any physical altercation between the Respondent and Ortiz and that Ortiz had exited the apartment on her own power, made a phone call or two in the hallway and then reentered the apartment on her own power. He also acknowledged that Ortiz² had told him that the Respondent had refused to let her out of the apartment and then at some point dragged her back in the apartment but that never happened.

The Respondent's Case

The Respondent testified on his own behalf and offered into evidence are photographs of a lamp (RX A & B) as well as photographs of himself on the day of the incident (RX C & D).

The Respondent

The Respondent has been with the Department for five years. He has been on modified assignment in the Court Section for the last year as a result of this incident. Prior to joining the Department, the Respondent was in the United States Marine Corps Reserve and served in Operation Iraqi Freedom. He was honorably discharged from the military.

In September 2008, he was living at [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] On September 6, 2008, his daughter's mother, Sandra Ortiz and

² The transcript refers to "Orchid" [Cifre] however this apparently should be Ortiz as noted above (see T 65).

his three-year-old daughter, Skylar, were living with him.

Ortiz had been living there for about a month and a half. They had both moved there in December of 2007. Ortiz later moved out in March 2008 and then returned at the end of August.

The Respondent stated that on the morning of September 6, 2008, he went to class at John Jay College. This was his regular day off (RDO). He returned to the apartment at about 1400 hours. Ortiz asked if he would like to go with her and her daughter down to 34th Street, Foot Action, where she worked part time, to pick up her paycheck. He told her no and stated that the weather was bad, there was supposed to be a storm that day, and it was not a good idea to take the child out in the rain. Ortiz was upset because she wanted a family outing but she went downtown to pick up her check anyway. She was gone for about two and a half hours.

When she returned, he was on the computer doing homework and she started questioning him about the child and asking if he had fed her. His daughter was watching television and playing with her toys. He said he had not fed the child because she had not indicated that she was hungry. In any event, he believed that Ortiz had fed her before she left.

Ortiz took the baby to the kitchen and started screaming and yelling that he was a pathetic father and a "deadbeat." Ortiz kept on screaming and yelling and the Respondent called his sister Jocelyn and asked her to pick up the child. The reason he did this was because Ortiz was escalating the screaming and using vulgarities and he did not want the child to see her parents argue. He did not believe, at that point, that there would be a physical altercation. Jocelyn said she needed a few minutes before she could

come down. As the argument continued between them, the doorbell rang and he assumed it was his sister. When he went to the door, he saw that it was Cifre. Cifre, he said, lived opposite his sister's apartment. He did not know why Cifre was there and he thought that maybe his sister had asked Cifre to come down as she had watched the child in the past. Cifre, the Respondent explained, is a friend of Ortiz but more so, a best friend of Acevedo, Ortiz' mother. At the time, the Respondent did not know about the phone conversation between Acevedo and Cifre.

When Cifre came to the door, he told her everything was fine and politely closed the door. At that point, the argument continued between himself and Ortiz. At one point, Ortiz said they should let the baby go with Cifre and he agreed that was a good idea.

Ortiz exited the apartment with the child and gave the child to Cifre. He did not try to stop Ortiz and he testified that up until that point, there had been no physical contact between himself and Ortiz, only yelling. The Respondent testified that Ortiz was out in the hall for about three to five minutes.

Ortiz reentered the apartment alone and as she did so she slapped him in the face and said "it's on now motherfucker." After that, she came fully inside the apartment and closed the door. At that point, she continued to hit him, punch and slap his face. She continued into the bedroom, where he had gone to get dressed so he could get out of the apartment. They fell on the bed as he was trying to restrain and prevent her from hitting him. She then bit him on his left arm and chest.

He asked her to stop hitting him so he could get dressed and she asked where he was going and he said that he was leaving the apartment. She then picked up a "stand up lamp" and as he turned to walk away, she hit him over the back of his head with it. The

lamp broke on impact. He said there was no pain at the moment, "... I guess I was in shock."

He continued to put his clothing on and went to the living room and tried to calm the situation down saying, "this has to stop, enough is enough, it's gotten out of control." At that point, she poked him in the eye. The Respondent testified that she was standing about a foot away from him when this happened and that she was upset, screaming and cursing. The Respondent stated that Ortiz said if he thought he was going to make it to sergeant that he was wrong, that he was not going to make it to see sergeant and she poked him in the eye.

When she poked him in the eye, he was in a lot of pain and he dropped to the floor with his other arm up to prevent her from striking him again. After that, he was done getting dressed and went out of the apartment to meet up with his friend, Frank Ramos.

The Respondent testified that he had an extensive collection of about 80 Jordan sneakers and he indicated that Ortiz knew he valued them. At one point, she went to the kitchen and grabbed two knives with the intention of cutting them up. As she grabbed the knives, he grabbed her arms and begged her to put the knives down before one of them got hurt. She did not damage the sneakers and never threatened him with the knives. This happened before they ended up in the bedroom.

The Respondent denied ever striking Ortiz, he denied ever punching her and he denied that he ever threw her down on the bed. The only contact he acknowledged was grabbing her in the arms, in the bicep area. When he left the apartment, he went downstairs, outside the building to meet up with his friend, Ramos, who lived about a

block and a half away. He explained that he wanted Ramos to be there as a witness to what was going on. Then he and Ramos returned to his apartment building. He saw Ortiz, who was screaming and yelling again. Ortiz complained saying, "Who does your sister think she is, she called the cops on me, I am going to jail today, I am going to fuck somebody up, I am going to jail today."

When the police responded, he (the Respondent) was in the lobby of the building and he identified himself as a member of the service. The parties were then taken to the precinct and both he and Ortiz were arrested. The charges were mutually dropped in Criminal Court. There are no orders of protection against either party involved at this time.

Since the incident, he and Ortiz have had minimal contact with each other, which is only in regard to the care of their child, Skylar. The Respondent testified that Skylar was not present when the physical violence occurred, nor was she present when Ortiz took out the knives to cut the sneakers.

On cross-examination, the Respondent acknowledged that he and Ortiz had a physical altercation on the day in question and that as a result, Ortiz received bruises to her body. He agreed that after Ortiz closed the door and said, "it's on motherfucker," she began to slap, punch and hit him. He also agreed that he tried to restrain her and keep her at bay. He said he did not leave the apartment at that point because he wasn't fully dressed and he had to get dressed in order to leave the apartment. He said that at that time, he was wearing basketball shorts and a T-shirt. He did not know specifically how Ortiz got the bruise to her eye and repeated that he did not slap or punch her in the eye.

He agreed that he called his sister to come down to take Skylar because he

believed Ortiz was going crazy. He did not see the need to leave the apartment at that time because "I didn't feel the situation would escalate to the point that it did. It was just an argument, I just didn't want my daughter to witness any of it."

He agreed that the first time Cifre knocked on the door, he opened it and told her everything was fine and politely closed the door. The Respondent acknowledged that everything was not fine, due to the argument and he also agreed that he did not leave at that time.

The Respondent agreed that Cifre knocked a second time and that Ortiz used Cifre's phone to make two calls. He again stated that Ortiz was in the hall for about three to five minutes. While she was doing that, the Respondent said he was trying to get dressed but he was not able to finish.

The Respondent agreed that there came a time, when Ortiz went into the kitchen and got two knives and that she was going to the closet where his sneakers were. He explained that he did not leave at that time because he did not feel threatened and that Ortiz indicated that she was strictly out to damage his property. The Respondent agreed that Ortiz was both volatile and irrational but he again asserted that he was not concerned for his safety as she clearly indicated she was only trying to damage his property.

FINDINGS AND ANALYSIS

The Respondent is charged under Specification No. 1 with engaging in a physical altercation with Sandra Ortiz and with endangering the welfare of a child under Specification No. 2.

In this case, the Department presented no actual witnesses to the events in

question. Sandra Ortiz did not testify at this proceeding, nor did Orchid Cifre, who was in the hallway outside of the apartment for at least a portion of the events in question. Nor did the Department offer the testimony of Sandra Acevedo regarding the text message or any evidence regarding the time of Acevedo's calls to 911.

Instead, the Department relied on the testimony of Burnicke, an investigator who interviewed those two witnesses. The only other Department witness was Phillips who principally testified as to what the Respondent said and attested to finding bite marks on his person.

The chain of events that led up to the incident in question is not in dispute. The Respondent, who was off duty that day, went to take classes at John Jay College. He returned to his home in the Bronx. Residing with him at that time was Ortiz, who is the mother of his then three year old daughter, Skylar. Ortiz wanted him to accompany her back to Manhattan so she could pick up a check. The Respondent did not want to go because it was raining heavily that day. Ortiz apparently was unhappy with this and went on her own. She returned to the apartment some time later. Shortly after her return, she became very annoyed because the Respondent had not fed the child in her absence.

What exactly happened after that is at the heart of the fact finding in this case. But even in this area of uncertainty, some things are clear. For instance, Ortiz acknowledged hitting the Respondent with a lamp and there are pictures of the broken lamp in evidence, (RX A and B).

There are also bite marks on the Respondent's chest and arm. Additionally, his right eye is red, (RX D and E). Ortiz also had visible injury, redness around her eye, a scrape on her left elbow and bruising on the forearm. She also had bruising on her

knuckles, (DX 1, 2 and 3).

There is one other undisputed fact. At some point, apparently while she was out picking up the check and before any argument with the Respondent, Ortiz sent a text message to her mother, Acevedo, indicating something to the effect that her mother should get custody of the child if something happened to her. This disturbed Acevedo who called 911. Acevedo also called her friend Cifre, who lived upstairs and who went down to the Respondent's apartment.³

As noted earlier, the Department attempted to put forward the Ortiz/Cifre version of events through hearsay testimony. Unfortunately, the picture of what occurred and timeline was not as clear as it could be and the inability to ask questions of Ortiz and Cifre hindered this Court's ability to fully understand their version of the facts.

For instance, Burnicke testified that Ortiz went out into the hall and gave the child to Cifre after the physical altercation had started. Indeed, Ortiz stepped out of the apartment and used Cifre's cell phone to make calls at this point in time. Yet Ortiz returned to the apartment rather than simply leaving when she had an opportunity to do so and there is no testimony that Cifre made any effort to dissuade or prevent her from returning to an abusive situation.

There might be some explanation for this conduct but neither Cifre nor Ortiz was present in Court to provide it. The Respondent was present and did testify. He claimed that there had been no physical altercation up to this point in time. He further testified that when Ortiz returned to the apartment after giving the child to Cifre, she said "It's on

³ There is no specific testimony as to when this text message was sent. Respondent's counsel repeatedly asserted that this occurred while she was out and the Department offered no objection or evidence to the contrary. Given that Acevedo made a 911 call in New Jersey and was routed to 911 in New York before calling Cifre it would appear that the time frame was such that the text message went out before Ortiz returned to the Respondent's apartment.

now motherfucker” and the physical altercation began. Indeed, the Respondent’s testimony dovetails with what Cifre said about the situation at the point in which Ortiz re-entered the apartment as she asserts that Ortiz said “I’m tired of this guy hitting me” before she closed the door. While that statement might seem to be a complaint, in the context of giving the child to Cifre then re-entering the apartment and closing the door behind her, it appears to have been a statement made as a prelude to physically aggressive conduct.

Under all the circumstances, the Respondent’s version of events sounds credible especially given the apparent volatility of Ortiz at the time of the incident.

It should be noted that Burnicke testified that the Respondent had said that the physical confrontation had begun prior to the child being given to Cifre. This corresponds to what he said Ortiz and Cifre told him but differs from the Respondent’s testimony at this trial.

This Court rejects that version of Respondent’s statements presented by Burnicke and accepts the Respondent’s trial testimony as to the sequence of events. There are several reasons for this. Burnicke’s testimony about what the Respondent said is hearsay. He was not a witness to the incident and he had taken several statements at the time including those of Cifre and Ortiz. It is possible he is mistaken or has conflated the versions of events so that Cifre, Ortiz and the Respondent all appear to say the same thing. No written or audio recorded version of a statement by the Respondent using the Ortiz/Cifre timeline was offered in evidence. No questions were asked of the Respondent regarding any prior statements he made which were inconsistent with his trial testimony. Thus there is nothing besides Burnicke’s testimony to establish that the Respondent

provided that sequence of events. Moreover, Burnicke demonstrated some difficulty remembering what the individuals he had interviewed actually said and on several occasions, the parties stipulated as to what was said at interviews because of this lack of clear recollection by Burnicke.

Another reason to reject Burnicke's recollection of what the Respondent said about the timeline is that it restates the Ortiz/Cifre version which, as it has already been noted, makes no sense. If the physical altercation had begun, Cifre should have made an effort to keep Ortiz from going back into the apartment. The Respondent's bite marks would have been visible and at least some of the injuries to Ortiz would have been visible if the fighting had started before the child was turned over. Cifre would have been able to tell Burnicke that she saw those injuries when Ortiz gave her the baby. There is no testimony that she made such a statement. These factors support the Court's finding that the Respondent's trial testimony is more reliable than the hearsay declarations conveyed by Burnicke.

With regard to the physical altercation itself, the Respondent testified that he did not anticipate being attacked. Indeed, when Ortiz picked up two knives to cut up his sneaker collection, something that is undisputed, the Respondent was not concerned for his safety. Further, he testified that his conduct was defensive and aimed at trying to fend off Ortiz' attacks.

Ortiz claimed to be the victim of the Respondent's aggression, however, her credibility on this issue is challenged by her admitted action in hitting the Respondent over the head, from behind, with a lamp. Further, the statements she made about how the Respondent received an injury to his eye appears to lack candor and understates her level

of physical aggressiveness. According to Burnicke, Ortiz claimed the Respondent walked into her finger. In her statement, read into the record, she claimed that somehow he bent her finger and that caused his eye to hit it. This simply makes no sense and on the very issue of who was being physically aggressive, it appears that Ortiz was less than truthful. Additionally, her claim that the Respondent, who fell to the ground after being poked in the eye, was merely being dramatic, indicates a lack of insight into what she was doing.

The scrapes and bruising to Ortiz' forearm and elbows appear to be minor injuries and are possibly consistent with the Respondent's claim that he was fending Ortiz off. The injuries to her knuckles certainly suggest that she was engaged in aggressive conduct. There is no testimony as to what caused the bruising near her eye, however, it too might have resulted from efforts by the Respondent to prevent further biting by Ortiz. In sum, the pictures of Ortiz do not, in and of themselves, disprove the Respondent's testimony.

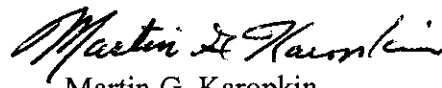
The Court finds that there is insufficient basis to rely on the hearsay statements of Ortiz and Cifre. Further, the Court finds the Respondent's testimony to be credible. The Respondent is found Not Guilty of Specification No. 1.

With regard to Specification No. 2, which charges the Respondent with engaging in "conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did knowingly act in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old," the Court not only finds the credibility problems outlined above but finds that the Respondent took specific and appropriate action to remove the child from an unpleasant and potentially dangerous situation.

As the verbal dispute escalated, the Respondent called his sister, Jocelyn Peri, who lived upstairs in the same building. He asked her to come down and get the child. Cifre got to the apartment moments before Jocelyn because she had been called by Ortiz' mother, Acevedo, in response to the troubling text message. While the baby initially went to Cifre and not Jocelyn⁴, the Respondent's call makes it clear that the Respondent made reasonable effort to get the child out of harm's way. The Respondent is found Not Guilty of Specification No. 2.

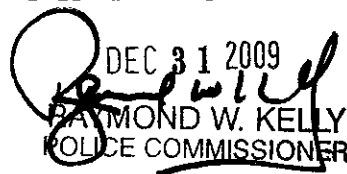
Since the Respondent has been found Not Guilty of all Charges and Specifications, I recommend that the Respondent be credited the 29 suspension days previously forfeited in this matter.

Respectfully submitted,



Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED



DEC 31 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

⁴ In the hallway Cifre turned the child over to the Respondent's mother who also arrived on the scene.